

Regulations of the People's Republic of China on Countering Foreign Improper Extraterritorial Jurisdiction

Article 1

For the purpose of safeguarding national sovereignty, security, and development interests, protecting the legitimate rights and interests of Chinese citizens and organizations, and upholding the international order based on international law, these Regulations are formulated in accordance with the National Security Law of the People's Republic of China, the Foreign Relations Law of the People's Republic of China, the Anti-Foreign Sanctions Law of the People's Republic of China, and other laws.

Article 2

The work of countering foreign improper extraterritorial jurisdiction shall implement a holistic approach to national security, balance development and security, coordinate domestic and international affairs, uphold the socialist system with Chinese characteristics, and promote the building of a more just and reasonable global governance system.

Article 3

The People's Republic of China adheres to an independent foreign policy of peace, opposes hegemonism and power politics, and opposes any foreign country interfering in China's internal affairs under any pretext or by any means.

Where a foreign country, in violation of international law and the basic norms of international relations, implements improper extraterritorial jurisdiction measures that endanger China's national sovereignty, security, and development interests, or harm the legitimate rights and interests of Chinese citizens and organizations, the Chinese government has the right to take corresponding measures.

Article 4

In accordance with the laws of the People's Republic of China, the international treaties to which the People's Republic of China is a party or has acceded, or on the basis of the principle of reciprocity, the Chinese government has the right to implement extraterritorial jurisdiction measures over acts that have an appropriate connection with China, so as to safeguard national sovereignty, security, and development interests, and protect the legitimate rights and interests of Chinese citizens and organizations.

Where the Chinese government, in accordance with the preceding paragraph, has the right to exercise jurisdiction over certain acts, and a foreign country claims to implement jurisdictional measures over the same acts, the two sides may, on the basis of jointly abiding by international law and the basic norms of international

relations, resolve the matter by concluding treaties or through diplomatic channels or consultations between competent authorities.

Article 5

The state shall establish and improve a relevant working mechanism for countering foreign improper extraterritorial jurisdiction (hereinafter referred to as the working mechanism), which shall coordinate and integrate the work of countering foreign improper extraterritorial jurisdiction.

The relevant departments of the State Council shall, in accordance with their respective functions and duties, undertake the specific work of countering foreign improper extraterritorial jurisdiction. The relevant departments of the State Council and other relevant organs shall strengthen coordination, cooperation, and information sharing in the identification of and response to foreign improper extraterritorial jurisdiction measures.

Article 6

The rule of law department of the State Council shall, together with other relevant organs, carry out the identification of foreign improper extraterritorial jurisdiction measures, and may conduct investigations and external consultations, etc. Relevant organizations and individuals may submit recommendations to the rule of law department of the State Council for carrying out identification work.

The following factors shall be comprehensively considered when carrying out the identification of foreign improper extraterritorial jurisdiction measures:

- (1) Whether it violates international law and the basic norms of international relations;
- (2) Whether the conduct subject to extraterritorial jurisdiction by a foreign country has an appropriate connection with that country;
- (3) Whether it endangers China's national sovereignty, security, and development interests, or harms the legitimate rights and interests of Chinese citizens and organizations;
- (4) Other factors that should be considered.

Where, after identification, the relevant measures constitute foreign improper extraterritorial jurisdiction measures, the rule of law department of the State Council may issue a public announcement. No organization or individual may execute or assist in the execution of foreign improper extraterritorial jurisdiction measures.

Where Chinese citizens or organizations, due to special circumstances, truly need to execute or assist in the execution of foreign improper extraterritorial jurisdiction measures, they shall apply to the rule of law department of the State Council and provide the corresponding facts and reasons, the scope of the execution or assistance, etc. After obtaining consent under the decision-making procedures of the working mechanism, they may execute or assist in the execution of the relevant measures within a specific scope.

Article 7

The Chinese government may assess the acts of relevant countries implementing

improper extraterritorial jurisdiction measures, determine the risk level, and take countermeasures and restrictive measures in the areas of foreign affairs, exit-entry, trade, investment, international cooperation, foreign aid, etc., in accordance with the law.

Article 8

The relevant departments of the State Council may, in accordance with the decision-making procedures of the working mechanism, include foreign organizations or individuals that promote or participate in the implementation of foreign improper extraterritorial jurisdiction measures on a list of malicious entities, and, in accordance with the Anti-Foreign Sanctions Law of the People's Republic of China and the Provisions on the Implementation of the Anti-Foreign Sanctions Law of the People's Republic of China, decide to take one or more of the following countermeasures and restrictive measures against them, and issue a public announcement:

- (1) Refusal to issue a visa, denial of entry, cancellation of a visa, or ordering a deadline for departure, deportation, or expulsion;
- (2) Cancellation or restriction of the relevant personnel's qualification to work, stay, or reside within China;
- (3) Seizure, impoundment, or freezing of their movable property, immovable property, and other types of assets within China;
- (4) Prohibition or restriction of organizations or individuals within China from providing data or personal information to them, or engaging in relevant transactions, cooperation, and other activities with them;
- (5) Prohibition or restriction of them from engaging in import and export activities related to China;
- (6) Prohibition or restriction of them from investing within China;
- (7) Prohibition or restriction of their products, means of transport, etc., from entering China;
- (8) Fines;
- (9) Other necessary measures.

The measures provided for in the preceding paragraph may also apply to organizations that are actually controlled by, or that are established or operated with the participation of, the organizations or individuals included on the list of malicious entities.

Article 9

Organizations or individuals against whom countermeasures and restrictive measures have been taken may apply to the relevant department of the State Council that made the decision to take the countermeasures and restrictive measures for a suspension, modification, or cancellation of the relevant countermeasures and restrictive measures. When applying, they shall provide facts and reasons concerning their correction of conduct, measures taken to eliminate the consequences of the conduct, etc.

The relevant department of the State Council that made the decision to take the countermeasures and restrictive measures may, based on actual circumstances, organize an assessment of the implementation status and effects of the countermeasures and restrictive measures.

Based on the assessment results or upon review of the relevant applications, and in accordance with the decision-making procedures of the working mechanism, the relevant department of the State Council that made the decision to take the countermeasures and restrictive measures may decide to suspend, modify, or cancel the relevant countermeasures and restrictive measures, and shall issue a public announcement.

Article 10

Where the implementation of relevant countermeasures and restrictive measures requires the involvement of other departments of the State Council, the relevant department of the State Council that made the decision to take, suspend, modify, or cancel the countermeasures and restrictive measures shall, in accordance with the procedures of the working mechanism, notify the relevant countermeasures and restrictive measures decisions to the departments of the State Council responsible for implementation.

The relevant departments of the State Council that receive the notice of the countermeasures and restrictive measures decisions shall implement them in accordance with their respective functions and duties.

Article 11

Where relevant organizations or individuals, under special circumstances, truly need to engage in relevant activities that are prohibited or restricted with organizations or individuals against whom countermeasures and restrictive measures have been taken, they shall apply to the relevant department of the State Council that made the decision to take the countermeasures and restrictive measures, and provide the corresponding facts and reasons. After obtaining consent under the decision-making procedures of the working mechanism, they may engage in relevant activities with the organizations or individuals against whom countermeasures and restrictive measures have been taken.

Article 12

The relevant departments of the State Council may take measures such as on-site inspections, access to and copying of relevant materials, etc., against organizations or individuals suspected of executing or assisting in the execution of foreign improper extraterritorial jurisdiction measures. The relevant organizations or individuals shall provide assistance and cooperation, and shall not refuse or obstruct.

Article 13

The relevant departments of the State Council may interview, order correction of, organizations or individuals that execute or assist in the execution of foreign improper extraterritorial jurisdiction measures.

The rule of law department of the State Council may, in accordance with the decision-making procedures of the working mechanism, issue a decision prohibiting the execution of foreign improper extraterritorial jurisdiction measures (hereinafter referred to as a prohibition enforcement order) against organizations or individuals that execute or assist in the execution of foreign improper extraterritorial jurisdiction measures. The relevant organizations or individuals shall comply with the prohibition enforcement order.

Article 14

Where any organization or individual, by executing or assisting in the execution of foreign improper extraterritorial jurisdiction measures, infringes upon the legitimate rights and interests of Chinese citizens or organizations, the Chinese citizens or organizations may, in accordance with the law, file a lawsuit with a people's court, requesting the cessation of the infringement and compensation for losses.

Article 15

The relevant departments of the people's governments at or above the provincial level shall, in accordance with their respective functions and duties, provide guidance and services to Chinese citizens and organizations in countering foreign improper extraterritorial jurisdiction.

Article 16

Industry associations and chambers of commerce shall, in accordance with laws, regulations, and their articles of association, play a role in industry self-discipline and coordination, guide members to operate in compliance with laws and regulations, promptly reflect industry demands, and provide services to members in areas such as market development, rights protection, and dispute resolution related to countering foreign improper extraterritorial jurisdiction.

Article 17

Where a person refuses to implement or circumvents the countermeasures and restrictive measures provided for in these Regulations, or violates the prohibition enforcement order, the relevant departments of the State Council may order correction, prohibit or restrict them from engaging in government procurement, bidding, and the import/export of relevant goods, technologies, or international service trade, etc., prohibit or restrict them from receiving data or personal information from outside China or providing data or personal information to outside China, prohibit or restrict them from entering or exiting China or staying or residing in China, impose fines, etc.

Article 18

Where a violation of these Regulations constitutes a crime, criminal liability shall be investigated in accordance with the law.

Article 19

Where countering foreign improper extraterritorial jurisdiction involves related work such as anti-corruption, anti-monopoly, anti-unfair competition, export control, data

security, judicial assistance, etc., and other laws or regulations provide otherwise, such other provisions shall apply.

Where there are other state provisions regarding countering acts by foreign countries that, in violation of international law and the basic norms of international relations, improperly prohibit or restrict Chinese citizens or organizations from engaging in normal economic, trade, and related activities with third countries (regions) and their citizens or organizations, such other provisions shall apply.

Article 20

These Regulations shall take effect as of the date of promulgation.

This translation attempts to preserve the original Chinese word order and phrasing as much as possible, while ensuring basic English readability. If you need a more idiomatic legal English version, please let me know.